

15th City Council
14th Regular Session
Series of 2007

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod

PRESENT:

Councilor	Ma. Beten S. Acosta	- President Pro Tempore
Councilor	Nilo G. Abellera	
Councilor	Victorio S. Advincula	
Councilor	Wilberto E. Al-ag	
Councilor	Leonardo R. Avila, III	
Councilor	Conrado C. Baluran	
Councilor	Samuel B. Bangoy	
Councilor	Karlo S. Bello	
Councilor	Louie John J. Bonguyan	
Councilor	Pilar C. Braga	
Councilor	Arnolfo Ricardo B. Cabling	
Councilor	Danilo C. Dayanghirang	
Councilor	April Marie C. Dayap	
Councilor	Edgar R. Ibuyan	
Councilor	Peter T. Laviña	
Councilor	Diosdado Angelo A. Mahipus, Sr.	
Councilor	Teresita C. Mata-Marañon	
Councilor	Bonifacio E. Militar	
Councilor	Tomas J. Monteverde, IV	
Councilor	Myrna G.L. Dalodo-Ortiz	
Councilor	Susan Isabel C. Reta	
Councilor	Angela A. Librado-Trinidad	
Councilor	Jose Louie P. Villafuerte	

ON OFFICIAL BUSINESS:

Vice Mayor	Sara Z. Duterte	- Acting City Mayor
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ABSENT:

Councilor	Dante L. Apostol, Sr.	- On Sick Leave
Councilor	Amilbangsa T. Manding	- On Sick Leave
Councilor	Rachel P. Zozobrado	- On Domestic Emergency Leave

ORDINANCE NO. 014-07 / 0154-07
Series of 2007

**AN ORDINANCE FOR THE COMPREHENSIVE
URBAN SHELTER AND SERVICES
DEVELOPMENT CODE OF DAVAO CITY,
OTHERWISE KNOWN AS THE "SHELTER CODE
OF DAVAO CITY"**

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled, that:

ARTICLE 1: TITLE, POLICY AND DEFINITION OF TERMS

Section 1. Title – This Ordinance shall be known as the “**COMPREHENSIVE URBAN SHELTER AND SERVICES DEVELOPMENT CODE OF DAVAO CITY, OTHERWISE KNOWN AS THE SHELTER CODE OF DAVAO CITY.**”

Section 2. Declaration of Policy – It is the policy of the City Government of Davao City to promote a just, dynamic and comprehensive land, security of tenure and urban services development program, in cooperation with the people's organizations, non-government organizations, private sector, and other key agencies of the government, which shall:

- a. improve the conditions of the destitute and underprivileged citizens in the urban and urbanizing areas by means of making more accessible to them urban shelter and services at affordable cost;
- b. secure and provide for the rational use and development of socialized housing sites;
- c. institutionalize people's participation and representation in policy formulation and implementation of socialized housing and urban services programs;

Section 3. Definition of Terms – For purposes of this Ordinance, the terms and phrases used shall mean or be understood as follows:

- a. **Affordable Cost** refers to the most reasonable price of land and shelter based on the needs and financial capabilities of the community beneficiary/partners and appropriate financing scheme.
- b. **Balanced Housing Requirement** refers to the mandate pursuant to Section 18 of the Urban Development and Housing Act (UDHA), whereby developers of proposed subdivision projects shall be required to develop an area for socialized housing equivalent to at least twenty percent (20%) of the total subdivision area or total subdivision project cost, at the option of the developer, within Davao City.
- c. **Census and Tagging Registration** refers to the system of identifying and registering poor household partner/beneficiaries to serve as basis for prioritizing social housing projects targeted in the Local Comprehensive Shelter Plan.
- d. **Comprehensive Land Use Plan (CLUP)** refers to the primary and dominant basis for zoning and use of land, applying a rational approach for allocating available land resources among competing user-groups and for different functions, consistent with the development and zoning plan of the city.
- e. **Housing Backlog** refers to the geographically identified urban poor households specifically located in depressed and blighted areas such as:

a.1. those in danger zones (road easements, river and creek sides, foreshore, esteros, canals, under the bridge and so on.);

a.2. those that are for demolition and eviction with existing or threat of demolition orders from either the courts or LGU;

a.3. those affected by government infrastructure projects;

a.4. those in titled government or private lands and in public open spaces;

e.5. those that are living in the Area Priority Development (APD) areas and those living in areas covered by Presidential Proclamations.

- f. Idle Lands refer to non-agricultural lands in urban and urbanizable areas on which no improvements, as herein defined, have been made by the owner, as certified by the City Assessor.
- g. Improvements refer to all types of development introduced by the landowner consistent to the tax declaration and approved land use.
- h. Comprehensive Shelter Plan refers to a document, coherent to the City Development Plan, regularly updated by the Housing Board once every three (3) years, containing the following elements:
 - an analysis of the housing situation and problems
 - prioritization of social housing projects addressing the housing backlog
 - identification, prioritization and zoning classification of social housing sites
 - fund sourcing and financing for the prioritized projects
 - appropriate organizational and management structure of the City Housing Office to implement the plans and programs of the Housing Board
- i. Non-government Organizations (NGOs) - refer to private organizations performing development services and duly registered with the appropriate registering agencies (Securities and Exchange Commission, Bureau of Rural Workers, Cooperative Development Authority) and other similar bodies.
- j. Professional Squatters refer to individuals or groups who occupy lands without the express consent of the landowner and who have sufficient income for legitimate housing. The term shall also apply to persons who have been previously awarded home lots or housing units by the Government but who sold, leased or transferred the same to settle illegally in the same place or in another urban area, and non-bona fide occupants and intruders of lands reserved for socialized housing project. The term shall not apply to individuals or groups who simply rent land and housing from professional squatters or squatting syndicates.
- k. Resettlement Action Plan (RAP) refers to the specific resettlement plan prescribed for involuntary relocation of informal settlers affected by demolitions and evictions issued by courts and the City Government.
- l. Resettlement/Relocation Sites refer to areas identified by the local government and other appropriate national agencies which shall be used for the relocation of the underprivileged and homeless citizens affected by government infrastructure projects and with court order for eviction.
- m. Security of Tenure refers to the degree of protection afforded (ownership, lease agreement, usufruct and other contractual arrangements) to qualified program beneficiaries against infringement or unjust, and arbitrary eviction.
- n. Socialized Housing or Social Housing refers to housing programs and projects covering lot only, house only, and house and lot, undertaken by national or local governments or the private sector for underprivileged and homeless citizens, which shall include resettlement development, sites and services development, slum upgrading, financing, liberalized terms on interest payments, and such other benefits in accordance with existing laws, rules and regulations.
- o. Squatting Syndicates - refers to groups of persons engaged in the business of squatter housing for profit or gain.
- p. Urban Areas refer to the built-up areas of the city with a population density of at least five hundred (500) persons per square kilometer.

- q. **Urban Poor Organizations** refer to organizations of urban poor communities undertaking security of tenure initiatives duly registered with Securities and Exchange Commission (SEC), Housing Land Use and Regulatory Board (HLURB), Cooperative Development Authority (CDA) or other similar bodies.
- r. **Urbanizing Areas** refer to sites with a population density of at least three hundred (300) persons per square kilometer.
- s. **Underprivileged and Homeless Urban Poor Dwellers** refer to families residing in urban areas whose combined household income falls within the poverty threshold as determined by the National Economic Development Authority (NEDA) Regional Index and who do not own housing facilities. They are also those who live in makeshift dwelling units and do not enjoy security of land tenure;
- t. **Unregistered or Abandoned Lands** refer to lands in urban and urbanizable areas not registered with the Register of Deeds, or without tax declaration from the City Assessor's Office, or which are uninhabited by the owner, or remain unutilized for a period of three (3) consecutive years immediately prior to the issuance, receipt or publication of notice of acquisition by the City. It does not include land which has been abandoned by reason of *force majeure* or any other fortuitous events, provided, that prior to such events, such land was used for some useful or economic purpose.

ARTICLE II

SOCIAL HOUSING PROGRAMS

Section 4. No Eviction and Demolition Policy. True to the mandate of improving the conditions of the underprivileged and homeless urban poor dwellers by the provision of urban housing and access to urban services at affordable cost, eviction and demolition as a matter of policy, shall be discouraged. It may, however, be allowed under the following situations:

1. When persons or entities occupy danger areas such as esteros, railroad tracks, garbage dumps, riverbanks, shorelines, waterways, and other public places such as sidewalks, roads, parks and playgrounds;
2. When government infrastructure projects with available funding are about to be implemented in any government or public property; or
3. When there is a court order for eviction and demolition.

Provided that, the execution of eviction of underprivileged and homeless citizens and demolition of their structures be in accordance with the UDHA, its implementing rules, Executive Order No. 152, S.2002, and other laws and regulations on the matter.

Section 5. Framework of the Social Housing Program A framework for the Social Housing Program shall be formulated by the City Government of Davao, through the Housing Board, in cooperation with the national shelter agencies, non-government organizations, people's organizations, and the private sector pursuant to the provisions of R.A. 7160 and R.A. 7279 and consistent with and pursuant to the provisions of this Ordinance shall be adopted and implemented sixty (60) days from the effectivity of the Implementing Rules and Regulations of this Ordinance. **3**

Section 6. Coverage and Exemptions. The Program shall cover all urban and urbanizing areas within the territorial jurisdiction of Davao City as defined by R.A. 7279 and all other lands which the City, through the Sangguniang Panlungsod, may zonify and determine as suitable for socialized housing subject to existing national and local laws.

The following lands shall be exempt from the coverage of the Social Housing Program of Davao City:

- a. Those included in the coverage of Republic Act No. 6657, otherwise known as the Comprehensive Agrarian Reform Law.
- b. Those actually used for national defense and security of the State.
- c. Those used, reserved or otherwise owned by the National Government, its agencies and instrumentalities, including government-owned or controlled corporations, or by the local government units. Provided, however, that the lands herein mentioned, or portions thereof, which have not been used for the purpose for which they have been reserved or set aside for the past ten (10) years from the effectivity of this Ordinance, shall be covered by this Ordinance.
- d. Those used or set aside for parks, reserves for flora and fauna, forests and watersheds, and other areas necessary to maintain ecological balance or environmental protection, as determined and certified to by the proper government agency.
- e. Those actually and primarily used for religious, charitable, or educational purposes including Information Technology parks, cultural and historical sites, hospitals and health centers, and cemeteries or memorial parks.
- f. Those irrigated and irrigable lands.
- g. Those areas identified as Strategic Agriculture and Fishery Development Zones (SAFDZ).
- h. Those prime agricultural areas declared by the Department of Agriculture.
- i. Those areas already declared as eco-tourism zones.
- j. Those areas already declared as protected low and protected medium density residential zones, except those already occupied for Socialized Housing before the effectivity of this Code.

Section 7. Eligibility Criteria for Beneficiaries. Criteria for beneficiaries of the Davao City Social Housing Program are as follows:

- a. Must be a Filipino citizen;
- b. Must be of legal age;
- c. Must be a resident of the City for at least one year;
- d. Must be a registered voter of Davao City;
- e. Must be an underprivileged and homeless citizen belonging to the identified backlog as reflected in the Comprehensive Shelter Plan of the City;
- f. Must not own any piece of property in any location in the City or any other place in the country;
- g. Must not be a professional squatter, as defined in Section 3 (j) of this Ordinance or a member of any squatting syndicate, as defined by Section 3 (o) of this Ordinance;

Section 8. Housing Program Strategies. The City Government of Davao in the fulfillment of its mandate to provide shelter to the people of Davao, may adopt the following housing program strategies:

8.1. Beneficiary Census and Tagging Registration. Within one (1) year from the effectivity of this Ordinance, the Housing Office, in coordination with the City Registration Committee as created by the Implementing Rules and Regulation (IRR) of RA 7279, shall identify and register all social housing beneficiaries within its jurisdiction pursuant to existing laws, regulations, and subsequent guidelines which the Housing Board shall formulate subject to the approval of the City Council of Davao.

8.2. Land Inventory. Within one (1) year from the effectivity of this Ordinance, the City, through the City Housing Office and with guidelines formulated by the Board, shall conduct an inventory of the following lands and improvements thereon enumerated below:

- a. Residential lands;
- b. Government-owned lands. Whether owned by the government or any of its subdivisions, instrumentalities or agencies, including government-owned or controlled corporations and subsidiaries;
- c. Unregistered or abandoned and idle lands, and
- d. Other lands not otherwise exempted by law as provided by Section 5 of R.A 7279

The City Housing Office shall update the inventory of the foregoing lands and improvements once every three years.

8.3. Land Identification. After the inventory, the City, through the City Council, and in coordination with the National Housing Authority (NHA), the Housing and Land Use Regulatory Board (HLURB), the National Mapping Resource Information Authority (NAMRIA), the Land Management Bureau-Department of Environment and Natural Resources (LMB-DENR), and the Presidential Commission on Urban Poor (PCUP), shall identify lands for socialized housing and resettlement areas for the immediate and future needs of the underprivileged and homeless in the urban areas, taking into consideration the degree of availability of basic services and facilities, the accessibility and proximity of job sites and other economic opportunities, and the actual number of registered beneficiaries.

8.4. Urban Land Reform Program for Relocation. The establishment of relocation or resettlement projects for poor communities affected by demolition or eviction is the core assistance under the Urban Land Reform Program.

No lands shall be appropriated for relocation purposes unless basic services or facilities are provided in cooperation with the private developers and concerned agencies. These basic services or facilities include, but is not limited to, the following:

- a. power and electricity and an adequate power distribution system;
- b. potable water;
- c. sewerage facilities and an efficient and adequate solid waste disposal system; and
- d. access to primary roads and transportation facilities

To the extent feasible, social housing and resettlement projects shall be located near areas where employment opportunities are accessible. The government agencies dealing with the development of livelihood programs and grant of livelihood loans shall give priority to the beneficiaries of this Program.

The Board shall be at the forefront in designing the development plan of acquired lands for the Urban Land Reform Program with the assistance of the City Engineer's Office, City Planning and Development Office, and other concerned government units of the City.

8.5. On-Site Resettlement. This refers to the process of upgrading security of tenure through the various modes of acquisition under Section 9 hereof and rehabilitation of existing blighted and shum urban areas minimizing displacements of dwellers in resettlement areas, and with provisions for basic services.

8.6. Slum Upgrading. This refers to the renewal of Areas for Priority Development (APD) either through zonal improvement programs or site development.

8.7. Public Rental Housing. The City, through the Board, shall formulate a scheme for public rental housing to address the needs of qualified beneficiaries:

- a) who temporarily resides in Davao City for employment purposes,
- b) those who lack the affordability to pay regular monthly amortization under the current socialized housing programs of the government, and
- c) those who lack the financial capacity to at one time fully construct a housing unit in the relocation area.

8.8. Transition Housing. The City, through the Board, shall formulate an appropriate scheme for housing to address the following:

- a) emergency shelter needs of victims of natural and man-made calamities;
- b) temporary hosting area for program beneficiaries in relocation sites while they are constructing their dwelling units in their assigned homelots.

8.9. Livelihood Framework. The City, through the Board, in coordination with the City Social Services Development Office, shall formulate an Urban Livelihood Framework that affords sources of income for underprivileged and homeless citizens thereby increasing their purchasing power. Thus, they are more able to pay the loans applied by them, if any,

8.10. Value Formation for Community Building and Development. The City Government shall encourage non-government organizations (NGOs) to initiate, support and participate in capability building programs for urban poor communities, which shall include activities relative to the social preparation of Program beneficiaries such as, but not limited to, community organizing, leadership trainings and values orientation seminars.

Section 9. Modes of Acquisition. The modes of acquiring lands for purposes of the urban land reform shall be among others:

9.1. Land Swapping. This refers to the process of land acquisition by exchanging land for another piece of land of equal value, or for shares of stock in a government or quasi-government corporation whose book value is of equal value to the land being exchanged, for the purpose of planned and rational development and provision for socialized housing where land values are determined on the

balanced assessment based on residential suitability, land classification, Bureau of Internal Revenue zonal valuation, market value and assessed value taken from existing tax declarations:

9.2. Land Banking. This refers to the acquisition of land at values based on existing use in advance of actual need, to promote planned development and socialized housing programs. The City may use the tax credit scheme where landowners pay their land tax arrearages in kind (land). It may purchase lands which are inexpensive for future use. It may also develop schemes to take advantage of the provisions on the twenty percent (20%) Balanced Housing under the UDHA.

9.3. Local Community Mortgage Program. The Community Mortgage Program (CMP) is a mortgage financing program of the Social Housing Finance Corporation (SHFC), a subsidiary of the National Homes Finance Corporation (NHMFC), which assists legally organized associations of underprivileged and homeless citizens to purchase and develop a tract of land under the concept of community ownership. The primary objective of the program is to assist residents of blighted or depressed areas to own the lots they occupy, or where they choose to relocate to, and eventually improve their neighborhood and homes through self-help and to the extent of their affordability.

The household beneficiaries of the Program shall be responsible for their organization into associations to manage their subdivisions or places of residence, to secure housing loans under the Community Mortgage Program and such other assistance beneficial to them. Household beneficiary associations may collectively acquire and own lands covered by this Program. No person who is not a bona fide resident of the area shall be a member or officer of such associations.

The local CMP shall prioritize project beneficiaries identified by the Comprehensive Shelter Plan to address the housing backlog of the City.

9.4. Negotiated Direct Purchase. Government-owned and foreclosed properties may be acquired by the City through negotiated purchase, provided that qualified community associations and beneficiaries shall be given the right of first refusal.

9.5. Donations to Government. This refers to all lands donated to the City Government in accordance with existing laws.

9.6. Expropriation of Lands. All lands within the territorial jurisdiction of Davao City found suited for socialized housing projects, shall be subject to expropriation for the purpose of this Ordinance in accordance with Section 11 of R.A. 7279 and other existing laws.

Section 10. Disposition of Lands for Socialized Housing. The City, through the Board, and in coordination with the concerned government agencies, with respect to lands belonging to the National Government, and other lands within the territory of the City, shall formulate and make available various alternative schemes for the disposition of lands to the beneficiaries of the Program. These schemes shall not be limited to those involving transfer of ownership in fee simple but shall include lease, with option to purchase, usufruct or such other variations as the local government units or the concerned agency may deem most expedient in carrying out the purposes of this Ordinance.

Section 11. Limitations on the Disposition of Lands for Socialized Housing -

No land for socialized housing, including improvement or rights thereon, shall not be sold, alienated, conveyed or encumbered by any beneficiary of this Program within twenty (20) years from the issuance of the title except to qualified Program beneficiaries as determined by the government agency concerned.

Should the beneficiary unlawfully sell, transfer, or otherwise dispose of his lot or any right thereon, the transaction shall be null and void. He shall also lose his right to the land, forfeit the total amortization paid thereon, and shall be barred from the benefits under this Ordinance for a period of ten (10) years from the date of violation.

In the event the beneficiary dies before full ownership of the land is vested on him, transfer to his heirs shall take place only upon their assumption of his outstanding obligations. In case of failure by the heirs to assume such obligations, that land shall revert to the Government for disposition in accordance with this Ordinance.

Section 12. Balanced Housing Development. The developers of subdivision projects, pursuant to the Urban Development and Housing Act (UDHA), shall be required to develop an area for socialized housing equivalent to at least twenty percent (20%) of the total subdivision area or total subdivision project cost, at the option of the developer, provided further that:

- a. The area compliance should be within Davao City, specifically within the social housing sites identified in the Comprehensive Shelter Plan;
- b. In case of monetary compliance, the same will accrue to the Davao City Socialized Housing Special Fund; and
- c. The beneficiary compliance should be the qualified beneficiaries prioritized in the Comprehensive Shelter Plan.

Developers of residential subdivision and residential condominium projects and/or proposed expansion of existing residential subdivisions and residential condominiums may opt to enter into development of new and/or existing settlement under the socialized housing programs, joint venture agreements with either the local government units or any of the housing agencies, slum upgrading or renewal of areas for priority development either through zonal improvement programs or slum improvement and resettlement program, participation in the community mortgage program, partnerships, contract to sell, accreditation of developers, land donation, and other feasible schemes.

No development permit application shall be approved unless the City Government, through the City Housing Land Use and Regulatory Unit (CHLRU), in coordination with the Local Housing Board, certifies to the compliance of the twenty percent (20%) Balanced Housing requirement.

Section 13. Budget for the Socialized Housing Programs. The City shall annually appropriate sufficient funds for the implementation of socialized housing programs and for the development and upgrading of existing relocation areas in accordance with law and subject to the budgeting and auditing procedures. The said amount shall be deposited to the Davao City Socialized Housing Fund mentioned in Section 21 hereof.

Section 14. *Application for Financial Loans and Assistance.* Applications for financial loans and assistance under this Ordinance shall be filed with the City Housing Office. Upon the application of a community association for a loan from the City Government under this Ordinance for the purpose of acquiring land to be used as resettlement site of the members of the association, the City Housing Office shall conduct feasibility studies as to the suitability of the subject areas for conversion into settlement or resettlement sites, prepares/facilitates pertinent documentation and submits recommendation to the Housing Board on the loan application.

ARTICLE III

CREATION AND MANDATE OF THE DAVAO CITY HOUSING BOARD

Section 15. *Creation and Mandate of the Housing Board* - There is hereby created the Davao City Housing Board which shall formulate, develop, recommend, coordinate and monitor the implementation of social housing policies, plans and programs and administer the efficient discharge of the provisions of this Ordinance and the expeditious delivery of tenure security and urban services in accordance with R.A. 7279.

For this purpose, the Mayor of Davao City shall convene the Housing Board within thirty (30) days from the effectivity of this Ordinance.

Section 16. *Powers and Functions of the Housing Board.* The Davao City Housing Board shall have the following powers, functions and mandates:

1. Act as a policy-making body and board to the City Housing Office;
2. Formulate the Local Comprehensive Shelter Plan which shall include among others, the social housing programs under Article III hereof within six (6) months from the constitution of the City Housing Board
3. Assist in the updating of the residential land zoning classification of the current CLUP;
4. Recommend policies for the simplification and transparent processing of development permits, individualization of title, awards, effect the transfer of awards and/or titles in Presidential Proclamations, for social housing projects;
5. Formulate measures and monitor the compliance to policies on the census and tagging registration of underprivileged and homeless families specifically those in the housing backlog as socialized housing beneficiaries;
6. Formulate measures and monitor the compliance to policies on the Balanced Housing Requirement under Section 18 of the UDHA and Section 12 of this Ordinance;
7. Formulate measures and monitor compliance to policies for the inventory and identification of lands for socialized housing, resettlement or relocation, based on site selection criteria, documentation requirements, and technical assistance under guidelines enacted for the purpose, with due regard to community participation in the selection and identification process of such lands;
8. Formulate, in consultation with concerned communities and urban poor organizations, the City Resettlement Action Plan (RAP) for those affected or to be affected by government infrastructure projects, natural or man-made

disasters/calamities, those occupying danger zones, public areas, private lots, especially with court-ordered demolition and evictions in their pre-implementation, implementation and post-implementation stages.

9. Formulate and recommend to the Sanggunian policies and measures in generating resources including funding to support the implementation of the Comprehensive Shelter Plan;
10. Formulate measures and recommend policies to the Sanggunian for entities participating in socialized housing to be provided with incentives which may include, but not limited to, any of the following:
 - a. transfer tax exemption of the land used for socialized housing;
 - b. reduction or exemption of fees for development permits of socialized housing projects;
 - c. real estate tax reprieve for the first three years of the socialized housing project.
11. Formulate schemes for the acquisition and disposition of lands within Davao City for socialized housing purposes in accordance with Sections 14 and 15 subject to guidelines, implementing rules and regulations enacted for the purpose;
12. Formulate and recommend partnership arrangements with the Social Housing Finance Corporation (SHFC), Home Development Mutual Fund (HDMF), Home Guaranty Corporation (HGC), Local Government Unit Guaranty Corporation (LGUGC), National Home Mortgage Finance Corporation (NHMF), National Housing Authority (NHA) and all key shelter agencies, private entities, POs and NGOs for the reduction and elimination of the housing backlog;
13. Conduct studies on shelter provision and programs in relation to the impact of population increase due to birth and in-migration;
14. Formulate policies and guidelines on the allocation and use of the Socialized Housing Fund found under Section 13 hereof;
15. Study and recommend for the strengthening of the present City Housing Office into a regular department;
16. Establish mechanics for extension of legal assistance to the urban poor families facing cases and threats of legal and/or illegal demolition in accordance with the Urban Development and Housing Act;
17. Formulate and propose an annual operational budget that will be included in the regular City budget, subject to existing law, rules and regulations;
18. Create the necessary technical working groups or committees and tap resource persons to assist the LHB in the execution of its functions under this ordinance;
19. Formulate and recommend programs for urban poor communities relative to the social preparation of program beneficiaries to include, but not limited to, committee organizing, leadership trainings and values formation; and
20. Perform such other related functions as may be necessary for the City to implement its mandate as provided under the UDHA.

Section 17. Composition of the City Housing Board. The City Housing Board shall be composed of the following members:

- 1) City Mayor, or in his absence, the City Administrator;
- 2) Chairperson of the Committee on Housing and Urban/Rural Development of the Sangguniang Panglungsod;

- 3) Head of the City Planning and Development Office;
- 4) Head of the City Housing Office;
- 5) One (1) representative from among the National and Key Shelter Agencies specifically those comprising the Regional Shelter and Urban Development Coordinating Council (RSUDCC) selected by the members thereof.
- 6) One (1) representative coming from the Association of Barangay Captains (ABC) especially from urban barangays with highest number of informal settlements or shelter-related issues to be elected by all the Barangay Captains;
- 7) Four (4) representatives coming from the broadest membership of coalitions/federations/consortia of urban poor peoples' organizations (POs) in the City of Davao – one (1) representative for each district and one (1) representative at large, to be voted from among themselves, *provided*, that a PO already represented in any local special body and/or local board may not be concurrently represented in the Housing Board;
- 8) One (1) representative from among the broadest coalitions/federations/consortia of Non Government Organizations (NGOs) operating with programs in the city shelter and urban development; *provided*, that an NGO already represented in any local special body and/or local board may not be concurrently represented in the Housing Board;
- 9) One (1) representative from among the broadest coalitions/federations/consortia of housing developer organizations of Davao City with housing projects within the city.
- 10) One (1) representative from among the organized technical and/or professional groups engaged in shelter programs and duly accredited by the City Council, to be chosen and appointed by the City Mayor.
- 11) One representative from the organized business groups like the Davao City Chamber of Commerce and Industry (DCCCI) to be chosen and appointed by the City Mayor.
- 12) An additional representative to be appointed at the discretion of the City Mayor.

The City Mayor or, in his absence, the City Administrator, shall act as the Chair of the Housing Board.

National and local government line agencies such as the Presidential Commission for the Urban Poor (PCUP), Department of Environment and Natural Resources (DENR), Department of Agrarian Reform (DAR), Department of Interior and Local Government (DILG), Local Government Units (LGUs) and others can be invited as resource persons or as members of the Technical Working Group formed by the Housing Board in aid of policy, program development and implementation.

Section 18. Sessions and Quorum of the Housing Board. The Housing Board shall meet at least once a month. Special sessions shall be called as may be deemed necessary. The presence of the majority, fifty percent (50%) plus one (1) of its members, shall constitute a quorum.

Within sixty (60) days from the convening of the Board, pursuant to Section 15 hereof, it shall formulate the Implementing Rules and Regulations (IRR) of this Ordinance for adoption subject to the approval of the City Council.

Section 19. Budget for the Overhead Expenses of the Housing Board and its Activities. The Housing Board shall propose an annual budget for its operation to be incorporated in the regular budget of the City.

Section 20. Compensation and Remuneration. All members of the Local Housing Board shall perform their duties with a corresponding honorarium to be determined by the City Council in the Annual Budget Ordinance which shall be paid upon actual attendance to board meetings, inclusive of special meetings, if any.

ARTICLE IV

DAVAO CITY SOCIALIZED HOUSING FUND

Section 21. Davao City Socialized Housing Fund – Subject and pursuant to existing laws, auditing guidelines and regulations, there shall hereby be created a special account to be called “Davao City Socialized Housing Fund” to be used exclusively for social housing purposes, provided however that no expenses under housing funds shall be appropriated for the purpose under this ordinance without the matter being placed specifically in the budget, approved by the City Council. The Housing Board shall be responsible for formulating guidelines on the allocation of such fund intended for the City’s Socialized Housing Programs under Section 13 hereof. Aside from the annual budget allocated by the City for socialized housing programs, other sources of funds pursuant to ordinances or resolutions to be enacted by the City Council for the purpose may be generated from any the following:

- a. Fixed percentage allocation based on the total loan share of the annual IRA/annual investment portfolio;
- b. Guarantees for social housing from the Home Guarantee Corporation and the Local Government Units Guarantee Corporation and other similar bodies;
- c. Imposition of equity share through savings as qualification for social housing avancement of beneficiaries;
- d. Accessing SHFC financing for CMP projects within the city;
- e. Bond flotation guaranteed by assets and other forms;
- f. Retention of social housing project repayment reflows as part of a revolving fund for social housing and maintained as trust fund (Section 5);
- g. Tax arrears paid as land swap for social housing;
- h. Land, cash or bond sales contribution from housing developers in compliance to Section 18 of RA 7279;
- i. Fees for housing related activities, grants, donations, loans and partnership commitments;
- j. Share from the payment of development permits, locational clearances and land use conversion fees;
- k. Other modes feasible and not limited to the above;

ARTICLE V

THE CITY HOUSING OFFICE

Section 22. The City Housing Office (CHO). The City Housing Office shall be the implementing body of the Shelter Programs of the City Government. The formulation of the Comprehensive Shelter Plan (CSP) shall be done in coordination with the City Housing Office.

ARTICLE VI

TRANSITORY COORDINATION WITH EXISTING LOCAL SPECIAL BODIES

Section 23. Transitory Coordination with Existing Local Special Bodies. The LHE upon its organization shall coordinate with other local shelter special bodies such as:

- a. Committee Against Squatting Syndicates and Professional Squatters (CASSPS) – Identified syndicates and those with double availment of local and/or national government financing programs shall be endorsed to the CASPSS for eviction proceedings. Their payments shall be forfeited and they will be substituted with qualified beneficiaries by the Housing Board.*
- b. Task Force on Resettlement and Relocation (TFRR) – identified legitimate but excluded informal settlers by the TFRR shall be reconsidered subject to the process of the Local Comprehensive Shelter Plan.*
- c. City Registration Committee (CRC) – the census and tagging registration activity shall develop the alpha list of all the bona fide beneficiaries for socialized housing as identified by the CSP of the City. Legitimate beneficiaries shall be subjected to prioritization based on the CSP.*

ARTICLE VII

FINAL PROVISIONS

Section 24. Separability Clause. If, for any reason, any provision of this Ordinance is declared invalid, the remaining provisions not affected by such declaration, shall continue to be in force and effect.

Section 25. Effectivity. This Ordinance shall take effect upon approval and posting in three (3) conspicuous places and after publication in a newspaper of general circulation in Davao City.

ENACTED, October 09, 2007 by a majority vote of all the Members of the Sangguniang Panlungsod.

(Note: Councilors Diosdado Angelo A. Mahipus, Sr. and Leonardo R. Avila, III were out when this ordinance was approved.)

CERTIFIED CORRECT:



ZULEIKA T. LOPEZ

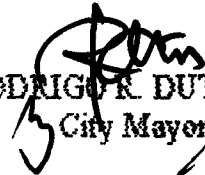
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:



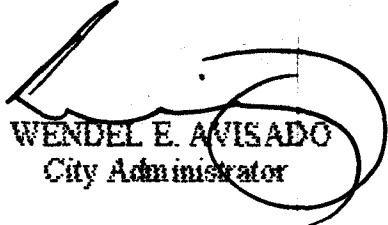
MA. BELEN S. ACOSTA
President Pro Tempore
Acting Presiding Officer

NOV 12 2007
APPROVED: _____ 2007



RODRIGO R. DUTERTE
City Mayor

ATTESTED:



WENDEL E. AVISADO
City Administrator



Republic of the Philippines
OFFICE OF THE CITY MAYOR
City of Davao

Ref. No. 1011-07

2nd Indorsement
November 13, 2007



Respectfully returned to the Honorable Sangguniang Panglungsod, Davao City, through Atty. Zuleika T. Lopez, Secretary, the herein Resolution No. 0154-07 and Ordinance No. 014-07, all Series of 2007, duly signed and approved by the City Mayor, for information and appropriate action.

For the City Mayor:

WENDEL E. AVISADO
City Administrator *WES*

ERWIN P. ALPARAQUE
Assistant City Administrator
(Administration)

//yai

CRD - CMO		
RELEASED		
NOV 14 2007	9:00	[signature]
DATE	TIME	INITIAL
FOR: SP		

54-2-18

Republic of the Philippines
OFFICE OF THE CITY LEGAL OFFICER
City of Davao 410
-oOo-



Ref. No. _____

SUBJECT: ORDINANCE NO. 014-07, SERIES OF 2007, KNOWN AS
"THE SHELTER CODE OF DAVAO CITY"

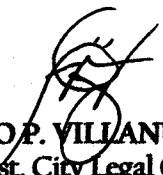
1st INDORSEMENT
October 31, 2007

ENDORSEMENT / RECOMMENDATION
No. 541 of 2007

Respectfully forwarded to the Office of the City Mayor, through the Office of the City Administrator, both of this city, the above-cited subject, with the information that this office finds the subject ordinance free from any legal infirmity.

In view of the foregoing, this office recommends the approval of the subject ordinance.

RESPECTFULLY SUBMITTED.

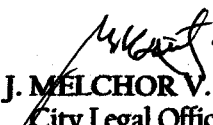

OSMUNDO P. VILLANUEVA, JR.
Acting Asst. City Legal Officer

CERTIFICATION

This is to certify that this legal opinion was arrived at personally by the undersigned based on the facts and issues presented/submitted in relation to applicable laws and jurisprudence.


OSMUNDO P. VILLANUEVA, JR.

APPROVED:


J. MELCHOR V. QUITAIN
City Legal Officer

October 31, 2007
(date of approval)

Request for Legal Opinion
Received on: October 26, 2007
Referred to lawyer: October 30, 2007

014-07/OPVJ

